

## 22STCV41036 22STCV41036

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-24

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Case Number: 22STCV41036 Hearing Date: August 24, 2026 Dept: 415

TENTATIVE

RULING

DEPARTMENT

415

HEARING DATE

August

24, 2026

CASE NUMBER

22STCV41036

MOTION

Motion

for Summary Judgment

MOVING PARTY

Defendant

Varun Bajaj

OPPOSING PARTY

Plaintiff

Carrie Miller

## BACKGROUND

Defendant Varun

Bajaj ("Defendant") moves for summary adjudication on the operative complaint of Plaintiff Carrie Miller ("Plaintiff"), and for summary adjudication on the causes of action therein.

Plaintiff's

opposition to the motion is procedurally defective in several respects. In Plaintiff's separate statement in support of the opposition, Plaintiff does not "set out verbatim" "[e]ach material fact claimed by the moving party to be undisputed" (Cal. Rules of Court, rule 3.1350(f)(1)), "unequivocally state whether" each "fact is 'disputed' or 'undisputed'" (id., rule 3.1350(f)(2)), cite "the nature of the dispute" and "the evidence that supports the position that the fact is controverted" as to each fact Plaintiff contends is in dispute (ibid.), and "include reference to the exhibit, title, page, and line numbers" for the evidence (ibid.). Additionally, Plaintiff's separate statement is not in the required format. (Cal. Rules of Court, rule 3.1350(h).)

The Court could

grant Defendant's motion because of these procedural deficiencies. (See Code Civ. Proc., § 437c, subd. (b)(3) [failure to comply with the separate statement requirements of section 437c "may constitute a sufficient ground, in the court's discretion, for granting the motion"]; see also *Greenwood v. F.A.A.* (1994) 28 F.3d 71, 977 ["[j]udges are not like pigs, hunting for truffles buried in briefs"].) Nonetheless, the Court will exercise its discretion and permit Plaintiff to correct the procedural deficiencies noted above. Accordingly, at the hearing of the motion, the Court will continue the matter for that purpose.

Plaintiff is to

file a new separate statement in opposition to the motion which complies with the requirements of California Rules of Court, rule 3.1350. The Court does not authorize Plaintiff to file new evidence or a new memorandum of points and authorities in support of the motion. Defendant may file a supplemental reply limited to issues raised by evidence cited in the new separate statement. The parties are to file and serve these documents pursuant to the deadlines set forth in Code of

Civil Procedure section 437c.

Defendant is ordered to give notice of the  
Court's ruling and to file proof of service of same.